

**THE TOWN OF WEST GREENWICH
STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS**

ORDINANCE NO. _____

AN ORDINANCE RELATED TO SOLAR ENERGY SYSTEMS AND FACILITIES

WHEREAS, on December 12, 2018, the Town Council enacted an amendment to the Zoning Ordinance creating Article XXIII, Solar Energy Systems and Facilities (the “Existing Solar Zoning Ordinance”); and

WHEREAS, the volume and size of major solar energy systems, existing and proposed, is above and well beyond what was anticipated by the Town Council when the Existing Solar Zoning Ordinance was enacted; and

WHEREAS, there are 11 major solar projects in the Town, at varying stages, ranging from under construction to having preapplication completed, and these projects total 186 Megawatts DC of power and cover up to 637 acres; and

WHEREAS, the 186 Megawatts represent nearly 20% of the goal set forth in the Governor’s Executive Order 17-06, regarding creating 1,000 MW of clean energy by 2020; and

WHEREAS, the 186 Megawatts represent 10% of the State Guide Plan – Energy 2035, which strives for 1,800 Megawatts of solar energy by 2035; and

WHEREAS, the current West Greenwich projects require extensive deforestation; and

WHEREAS, the National Grid infrastructure cannot readily accept all of the proposed individual solar power supplies; and

WHEREAS, local property owners interested in leasing or selling their land for commercial solar can be misled about the solar process with no guarantee about the viability of the proposed projects; and

WHEREAS, there is no direct benefit or easily attainable reduction on the local ratepayers’ energy bills; and

WHEREAS, for these reasons, the Town Council desires to modify the Existing Solar Zoning Ordinance to curtail the development of large solar arrays;

IT IS ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF WEST GREENWICH, RHODE ISLAND, AS FOLLOWS:

Table of Uses

Revise as follows:

Use Category	RFR-2	RFR-1	OSPL	NB	HB	Exit 7 SMD	IND A	IND B	CORP	SVD
48 UTILITIES, COMMUNICATIONS AND SANITARY SERVICES	X	X	X	X	X	X	X		X	X
4821 Solar energy system, major	S	X	X	X	X	X	X	S	X	X
4821B Solar energy system, medium	S	X	X	X	X	X	S	S	X	X
4821C Solar energy system, minor	S	X	X	X	X	X	S	S	X	X
4821D Solar energy system, minor; accessory use	P	P	X	X	X	X	X	X	X	X
4821E Solar energy system, business accessory	X	X	X	X	S	S	S	S	X	X
4821F Solar energy system, roof-mounted	P	P	P	P	P	P	P	P	P	P
4821G Solar energy system, covered parking accessory use	S	S	P	P	P	P	P	P	P	P
4821H Solar energy system, limited	X	X	X	X	X	X	S	S	X	X

Delete Article XXIII in its entirety and replace with the following:

Article XXIII – Solar Energy Systems and Facilities

Sec. 400-203. Purpose and intent.

The intent of this Article is to allow solar energy systems that do not have adverse effects on the rural character or environment of the Town and prohibit all other solar energy systems.

Sec. 400-204. Definitions.

SOLAR ENERGY SYSTEM

A device or specific-use structural design feature, a substantial purpose of which is to provide for the collection, storage, and distribution of solar energy for space heating or cooling, electricity generation, or water heating.

SOLAR ENERGY SYSTEM, BUSINESS ACCESSORY

A solar energy system that is accessory to a business and that produces no more than twice the electricity needed for the business.

SOLAR ENERGY SYSTEM, COVERED PARKING ACCESSORY USE

A solar energy system that is structurally mounted to the ground yet additionally maintains a permanent function to park vehicles under. This shall only be permitted as an accessory use.

SOLAR ENERGY SYSTEM, GROUND-MOUNTED

A solar energy system that is structurally mounted to the ground and is not roof-mounted.

SOLAR ENERGY SYSTEM, LIMITED

A solar energy system that has a rated nameplate capacity of no more than 1 MW AC and occupies no more than 4 acres of surface area, including inter-row and panel/collector spacing.

SOLAR ENERGY SYSTEM, ROOF-MOUNTED

A solar energy system that is structurally mounted to or structurally ballasted on the roof of a building or structure; includes solar shingles.

Sec. 400-205. General requirements.

- A. Solar energy systems shall be manufactured and designed to comply with applicable industry standards, including the American National Standards Institute (ANSI), Underwriters Laboratories (UL), the American Society for Testing and Materials (ASTM), and other appropriate certifying organizations.
- B. Solar energy systems connected directly to a distribution or a transmission system must submit an interconnect feasibility study at the preapplication stage; an impact study for preliminary plan submission; and an approved interconnection agreement with the interconnecting electric utility prior to final approval, where applicable.
- C. No solar energy system shall be constructed, installed or modified without first obtaining all state and local approvals as well as all applicable permits and shall be subject to

periodic inspections as deemed necessary by the building official and other Town officials.

D. Solar energy systems shall be constructed to minimize the use of herbicides.

E. Dimensional regulations for ground-mounted solar energy systems.

(1) The maximum height of a ground-mounted solar energy system shall be 12 feet, with the exception of solar-covered parking structures which shall have a maximum height of 18 feet from the ground. The height shall be measured from the ground level or the base of the system's pedestal to the highest point of the solar energy system, including the top of any support structure or panel. A maximum of six feet of fill shall be permitted, and a dimensional variance shall be required for projects proposing more than six feet of fill.

(2) Setbacks.

a. A solar energy system that is accessory to a principal structure may be located no closer than 1/2 of the setback that would otherwise apply or 20 feet from the front, side, or rear site lines, whichever is greater.

b. A limited solar energy system shall have a setback requirement of 200 feet from adjacent residential zoning districts and from the front yard line. Where the subject property borders a nonresidential zoning district, the setback shall be 50 feet.

(3) Lot coverage. A limited solar energy system shall cover no greater than 50% of a lot or contiguous lots in common ownership. The lot coverage calculation shall include inter-row and panel/collector spacing, meaning that the entire area of the installation shall be counted as lot coverage.

F. Panels for solar energy systems shall be recyclable unless the Planning Board approves the use of nonrecyclable panels due to extenuating circumstances.

G. Except for roof-mounted systems, solar energy systems shall not be permitted on any property that is encumbered by a conservation easement or on state-owned property.

H. A limited solar energy system that is located on more than one contiguous parcel of land shall be considered a single system and shall not exceed the land area/capacity threshold specified in Sec. 400-204.

Sec. 400-206. Limited solar energy systems.

A. Major land development. Each limited solar energy system application must be reviewed by the Planning Board as a major land development project.

B. General requirements.

(1) Location. A limited solar energy system shall be allowed in accordance with the Town of West Greenwich Zoning Ordinance Use Tables.

(2) A ground-mounted facility shall be designed to prevent unauthorized access subject to the review and acceptance of the Planning Board and concurrence of the Director of Public Works and the Fire Marshal as it relates to the provision of emergency service. Security fencing shall be installed prior to installation of panels.

(3) The applicant shall demonstrate that adequate access and parking are provided for service and emergency vehicles as determined by the planning board in consultation with the Fire Marshal.

- (4) Landscaping. Clearing of natural vegetation shall be limited to what is necessary for the construction, operation, and maintenance of the solar energy system or otherwise prescribed by applicable laws, regulations, and bylaws/ordinances. The disturbance of topsoil shall be limited to those areas that are required for the installation of the proposed solar energy system. Topsoil shall be stockpiled for re-use, restoration, and stabilization of the site after.
- (5) Buffering. Applicants proposing ground-mounted solar energy systems shall propose an appropriate buffer that adequately mitigates visual impacts on surrounding properties and the neighborhood in general. Selection of the proposed buffer should be based on the context and characteristics of the specific site, and shall be done in consultation with a landscape designer. Choices include, but are not limited to: (1) wooded buffer; or (2) full landscape screen. The Board shall determine the appropriate buffer based on site conditions. If a full landscape screen is utilized, the applicant shall post a bond for the maintenance of that landscape screen during the expected life of the system.
- (6) Demarcation and maintenance of buffer. The required buffer shall be delineated with permanent markers. If a 200-foot setback is required under § 400-205E(2)(b), the first 150 feet of that setback distance shall be a no-cut zone, and the only allowable trimming of buffer vegetation shall be growth (branches/limbs) that overhang the buffer zone.
- (7) Drainage and erosion and sedimentation control shall conform to the Rhode Island Department of Environmental Management Stormwater Design Manual and all applicable regulations, local and state.
- (8) Reasonable efforts, as determined by the Board, shall be made to place all utility connections from the facility underground, depending upon appropriate soil conditions, shape, topography of the site, subsurface conditions, and any requirements of the utility provider.
- (9) Lighting of a ground-mounted solar energy system shall be "dark-sky rated" and shall be consistent with local, state, and federal law. Lighting of other parts of the facility, such as appurtenant structures, shall be limited to that required for safety and operational purposes, and shall be reasonably shielded from abutting properties. Where feasible, lighting of the facility shall be directed downward and shall incorporate full cut-off fixtures to reduce light pollution.
- (10) Financial security. With the exception of roof-mounted structures, applicants proposing to develop limited solar energy systems shall be required to provide a form of surety, either through escrow account, bond or otherwise, to cover the cost of removal in the event the Town must remove the facility and restore the landscape, in an amount and form determined to be reasonable by the Board (and subject to the review of the Town Solicitor), and/or as agreed to and detailed in the site lease agreements. As part of the review for the lease agreements, the applicant shall submit a fully inclusive estimate of the costs associated with removal. The amount shall include a mechanism for calculating increased removal costs due to inflation and any expected salvage or resale value. Such surety will not be required for municipally or state-owned facilities. The Administrative Officer shall recommend to the Planning Board the amount of the financial security the applicant must provide to insure facility removal and site

restoration. The Planning Board may require the applicant to cover the cost of third-party verification of the estimated removal/decommissioning costs. The applicant shall submit the financial guarantee before any local permits are issued.

- (11) Removal requirements. With the exception of roof-mounted structures, any solar energy system that has reached the end of its useful life or has been abandoned shall be removed. The applicant shall submit a decommissioning plan to the Zoning Board and/or Planning Board with the application for project review and approval. The owner or operator shall physically remove the facility no more than 180 days after the date of discontinued operations. The owner or operator shall notify the Board by certified mail no later than 90 days before the proposed date of discontinued operations and plans for removal. Decommissioning shall consist of:
- (a) Physical removal of all ground-mounted solar energy systems, structures, equipment and security from the site.
 - (b) Disposal of all solid and hazardous waste in accordance with local, state, and federal waste disposal regulations.
 - (c) Stabilization or revegetation of the site as necessary to minimize erosion. The Board may allow the owner or operator to leave landscaping or designated below-grade foundations in order to minimize erosion and disruption to vegetation.
- (12) Abandonment. With the exception of roof-mounted systems, absent notice of a proposed date of decommissioning or written notice of extenuating circumstances, the solar energy system shall be considered abandoned when it fails to operate for more than one year without the written consent of the Town Council and Planning Board as it relates to the land development project approval. If the owner or operator of a limited solar energy system fails to remove the facility in accordance with the requirements of this section within 150 days of either abandonment or the proposed date of decommissioning, the Town may physically remove the facility, without further notice; and or/may place a lien on the property for any costs incurred over and above the bond amount, with statutory interest